

SUPREME COURT OF THE STATE OF NEW YORK Index No. _____
COUNTY OF KINGS Date Filed: _____

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MARCUS EDWARDS,

Plaintiff,

- against -

SUMMONS WITH NOTICE

THE CITY OF NEW YORK, CONRAD NARCISSE
and NYPD Officer FACEY,

Defendants.

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To the above named Defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this Summons, to serve a notice of appearance, on Plaintiff's Attorney(s) within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

THE BASIS OF THE VENUE DESIGNATED IS: CPLR 504.

PLAINTIFFS' ADDRESS: 1345 E.99th St, Brooklyn, NY 11236.

DEFENDANT'S ADDRESS: (1) 1 Centre Street, New York, NY 10007
(2-3) 1 Police Plaza, New York, NY 10007

NOTICE OF NATURE OF ACTION: Malicious prosecution and Civil Rights violation 42 U.S. § 1983,

RELIEF SOUGHT: Monetary and Punitive Damages.

Dated: Brooklyn, New York
July 2, 2020



Reingold & Tucker
Attorney for Plaintiff
26 Court Street, Suite 2105
Brooklyn, NY 11242
(718) 875-4805

Upon failure to appear, judgment will be taken against you by default in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with costs, legal fees and disbursements.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

Index No.

-----X
MARCUS EDWARDS,

Plaintiff,

- against -

COMPLAINT

THE CITY OF NEW YORK, CONRAD NARCISSE
and NYPD Officer FACEY,

Defendants.

-----X

Plaintiff, by his attorneys, Reingold & Tucker, as and for
his Complaint, respectfully alleges, upon information and belief,
as follows:

1. Plaintiff was and is at all times hereinafter mentioned
a resident of the County of Kings, City and State of New York.

2. Defendant THE CITY OF NEW YORK was and still is at all
times hereinafter mentioned a Municipal Corporation organized and
existing by virtue of the laws of the State of New York.

3. Plaintiff has complied with the statutes herein in that
he has filed a notice of claim with defendants within ninety (90)
days of the date the claim herein accrued, and that more than
thirty (30) days have elapsed since the presentation of said
notice of claim and defendants have neglected or refused to
adjust or make payment on said claims.

4. Defendants have not requested an oral examination
pursuant to General Municipal Law § 50-h.

5. This action has been commenced within one (1) year and
ninety (90) days of the date plaintiff's causes of action herein

accrued.

6. On September 8, 2017 at approximately 5:00pm at or near the premises of 120 Chauncey Street, Brooklyn, New York, in the County of Kings, City and State of New York, plaintiff was arrested by defendant NYC's police officers, including defendant's CONRAD NARCISSE and NYPD Officer FACEY and was unlawfully and illegally physically seized and arrested by said defendants under the employ of defendant NYC and while acting in the course of their employment with defendant City of New York and the New York City Police Department, and maliciously criminally prosecuted plaintiff in violation of his Federal and State Constitutional rights.

7. Plaintiff was acquitted of all criminal charges under Docket # 4125-2017 in November, 2019.

First Cause of Action: Malicious Prosecution

8. Plaintiff incorporates paragraphs 1 - 7, inclusive above by reference as if set forth fully herein.

9. Defendants arrested and imprisoned plaintiff by detaining him, handcuffing plaintiff and placing him in cell operated the defendant NYC and/or its governmental agency the New York City Police Department.

10. Defendants did not possess a warrant for said arrest and imprisonment of plaintiff.

11. Defendants intentionally arrested and imprisoned

plaintiff.

12. Defendants used excessive force in arresting plaintiff.

13. Defendants did not have the right to arrest and imprison plaintiff.

14. Defendants did not have probable cause to arrest and imprison plaintiff.

15. Plaintiff did not consent said arrest and imprisonment.

16. Plaintiff was conscious of said arrest and imprisonment.

17. Defendants did not otherwise possess a privilege to arrest and imprison plaintiff.

18. Defendants thereafter maliciously prosecuted plaintiff by wrongfully complaining, commencing and/or continuing a criminal proceeding under Docket # 4125-2017 against plaintiff, by the criminal court action under Docket # 4125-2017 ending in favor of the plaintiff with an acquittal, by the absence of probable cause for the criminal proceeding and by defendants instituting the criminal proceeding with actual malice, including arresting and prosecuting plaintiff while defendants knew plaintiff committed no crime.

19. As a result of defendants' conduct, plaintiff suffered multiple personal injuries including loss of liberty and freedom, personal and public humiliation and shame, psychological trauma and severe emotional distress, legal fees and damages for future injuries and lost wages, all to plaintiff's damage.

Second Cause of Action: 42 U.S.C. § 1983

20. Plaintiff incorporates paragraphs 1 - 19, inclusive above by reference as if set forth fully herein.

21. Defendants violated plaintiff's civil rights pursuant to 42 U.S.C. § 1983 by instituting policy and pattern of arresting people without probable cause to do so, by defendants NARCISSE and FACEY intentionally and wrongly filing false reports, complaints and making false statements about plaintiff to the Kings County District Attorney's office, by having a vendetta against plaintiff and wrongfully using their power to arrest to arrest plaintiff and by causing the criminal prosecution under Docket # 4125-2017 to exist and continue when said defendants knew their allegations were wrong and false.

22. The criminal court case under Docket # 4125-2017 against plaintiff ended in plaintiff's favor by an acquittal of a jury and dismissal in November, 2019.

23. As a result of these said violations of 42 U.S.C. § 1983, plaintiff suffered the loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering, criminal prosecution as well as personal and public humiliation and damages for future injuries and lost wages, all to plaintiff's damage.

Third Cause of Action: New York State Constitutional Violations

24. Plaintiff incorporates paragraphs 1 - 23, inclusive

above by reference as if set forth fully herein.

25. Defendants violated plaintiff's civil rights pursuant the New York State Constitution by instituting a policy and pattern of arresting people without probable cause to do so, by defendants NARCISSE and FACEY intentionally and wrongly filing false reports, complaints and making false statements about plaintiff to the Kings County District Attorney's office under Docket # 4125-2017, by having a vendetta against plaintiff and by allowing the criminal prosecution under Docket # 4125-2017 to exist and continue when said defendants knew their allegations were wrong and false.

25. The criminal court case under Docket # 4125-2017 against plaintiff ended in plaintiff's favor by an acquittal of a jury and dismissal in November, 2019.

25. As a result of said NYS Constitutional violations, plaintiff suffered injuries including, but not limited to, loss of freedom and liberty, psychological, mental and emotional trauma, shame embarrassment and suffering, criminal prosecution as well as personal and public humiliation and damages for future injuries and lost wages, all to plaintiff's damage.

WHEREFORE, plaintiff demands judgment against defendants in a sum that exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction together with costs,

legal fees and disbursements.

Dated: Brooklyn, New York
July 2, 2020



Jordan Tucker
Reingold & Tucker
Attorneys for Plaintiff
26 Court Street, 21st Floor
Brooklyn, NY 11242